



CHAPTER 68.

An Act to make further and better provision with respect to the payment of superannuation allowances and gratuities by local authorities and certain statutory undertakers, and with respect to the persons entitled to participate in the benefits of a local authority's superannuation fund or scheme, and for purposes connected with the matters aforesaid. [30th July 1937.] A.D. 1937.

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

SUPERANNUATION OF EMPLOYEES OF LOCAL AUTHORITIES NOT BEING LOCAL ACT AUTHORITIES.

Superannuation funds and contributors thereto.

1.—(1) As from the appointed day, a superannuation fund shall, subject to the provisions of this section, be maintained for the purposes of this Part of this Act by each of the following bodies, that is to say :—

- (a) the council of every county, county borough and metropolitan borough;

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- (b) the council of every county district having on the day six months before the appointed day one hundred or more employees who, according to a return made by the council to the Minister for the purposes of this subsection, will be contributory employees within the meaning of that expression as used in this Act;
- (c) every joint committee established by a combination scheme for the time being in force; and
- (d) every other local authority as respects whom the Local Government and other Officers' Superannuation Act, 1922, (in this Act referred to as "the Act of 1922") was in operation immediately before the appointed day.
- (2) The preceding subsection shall not apply to any local authority specified therein who—
- (a) not having adopted the Act of 1922, maintain a superannuation fund under a local Act; or
- (b) are a constituent authority under a combination scheme for the time being in force; or
- (c) were immediately before the appointed day a party (otherwise than in the capacity of the admitting authority) to an admission agreement;
- and shall cease to apply to any local authority specified therein who become a constituent authority under a combination scheme, or who, under subsection (3) of section four of this Act, transfer their superannuation fund in accordance with directions of the Minister to another authority.
- (3) In this Act—
- (a) a local authority who are for the time being required to maintain a superannuation fund under this Part of this Act are referred to as an "administering authority";
- (b) a council mentioned in Part I of the First Schedule to this Act who, not having adopted the Act of 1922, maintain a superannuation fund under a local Act are referred to as a "local Act authority", and the superannuation scheme which such an authority administer is referred to as a "local Act scheme";

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- (c) the local authority, or other body, in whose employment a contributory employee is, are in relation to him referred to as the "employing authority"; and
- (d) the superannuation fund maintained under this Part of this Act, in the benefits of which a contributory employee is entitled to participate, is, in relation to him and to the employing authority, referred to as "the appropriate superannuation fund," and, in relation to him and to the employing authority and to that fund, the local authority maintaining the fund are referred to as "the appropriate administering authority."

2.—(1) Any two or more administering authorities may enter into combination for the purpose of maintaining a joint superannuation fund under this Part of this Act in accordance with the terms of a combination scheme made by them.

Combina-
tion
schemes.

(2) A combination scheme shall provide for the administration of the fund by a joint committee, and shall contain such supplemental and consequential provisions as appear to the constituent authorities to be necessary or expedient for the purpose of applying the provisions of this Act to a combination of authorities.

(3) The joint committee established by a combination scheme made under section five of the Act of 1922 shall, not less than twelve months before the appointed day, make a scheme for making such modifications in the combination scheme as appear to them to be necessary for bringing it into accordance with the provisions of this Act and continuing it in force as a scheme made under this section :

Provided that the committee may, if they think fit, make a new combination scheme to take effect in lieu of the existing scheme.

(4) A combination scheme may be amended by a subsequent scheme made by the joint committee concerned and approved by the Minister after consultation with the constituent authorities.

(5) A combination scheme may be revoked by a resolution passed by the joint committee concerned and approved by the Minister after consultation with the

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— directions as he deems necessary for the transfer of the
PART I. joint superannuation fund and the liabilities thereof, and
—cont. with respect to other consequential and incidental matters.

(6) A joint committee established by a combination scheme may sue and be sued in the name of their clerk, and an action by or against the committee shall not abate by the death or removal of the clerk, but shall continue as if the clerk for the time being were the plaintiff or defendant therein.

Contribu-
tory em-
ployees.

3.—(1) On and after the appointed day all such persons as are mentioned in the next succeeding subsection shall, subject to the provisions of this section and to the provisions of Part III of this Act relating to officers appointed in a temporary capacity, be entitled to participate in the benefits of the appropriate superannuation fund maintained under this Part of this Act, and persons so entitled shall, unless they are such persons as are mentioned in the proviso to subsection (1) of section six of this Act, contribute to that fund in accordance with the provisions of that section.

In this Act, the expression “contributory employee” means a person who is for the time being entitled to participate in the benefits of such a superannuation fund, notwithstanding that he may be such a person as is mentioned in the said proviso.

(2) The persons referred to in the preceding subsection are—

- (a) every whole-time officer of a local authority specified in Part I of the First Schedule to this Act who are not a local Act authority;
- (b) every servant, or part-time officer, of such a local authority as aforesaid who belongs to a class or description which the authority have by a statutory resolution specified as a class or description the members of, or persons falling within, which are to be contributory employees;
- (c) every officer or servant of a local authority, not being either a local authority specified in Part I of the said First Schedule or a local Act authority, whom the authority have by a statutory resolution specified as a contributory employee;

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—cont.

(d) every registration officer acting in or for a district in relation to which registration functions are discharged by a local authority who are not a local Act authority;

(e) in the circumstances mentioned in Part I of the Second Schedule to this Act, a transferred poor law employee in the employment of a local authority who are not a local Act authority and a transferred rating employee in such employment;

(f) every employee of the managers of any public elementary school maintained but not provided by a local education authority for elementary education who are not a local Act authority, being an employee whom the authority have, by a statutory resolution and with the consent of the managers, specified as a contributory employee; and

(g) every other person who on the appointed day was in the employment of a local authority not being a local Act authority, and who immediately before that day held a post in virtue of which he was, or was being treated as being, subject to the Act of 1922, but so long only as he continues without any break of service in the employment of that authority, whether in the same post or in some other post.

(3) A person who becomes a contributory employee under a local authority shall continue to be a contributory employee so long as he continues without any break of service in the employment of that authority, whether in the same post or in some other post.

(4) The following persons shall not become contributory employees by virtue of the foregoing provisions of this section, that is to say, a person who—

(a) is such a person as is mentioned in Part II of the First Schedule to this Act;

(b) is under the age of eighteen years; or

(c) has attained the age of fifty-five years and has not completed, and cannot before attaining the age of compulsory retirement applicable in his case complete, ten years of service:

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—cont.

26 Geo. 5. &
1 Edw. 8.
c. 40.Funds to
which con-
tributions
are payable.

Provided that paragraph (c) of this subsection shall not have effect in relation to such a midwife as is mentioned in paragraph (b) of subsection (3) of section two of the Midwives Act, 1936.

4.—(1) The appropriate superannuation fund in relation to the contributory employees of an employing authority shall, where that authority are an administering authority, or are a constituent authority under a combination scheme for the time being in force, or were immediately before the appointed day a party to an admission agreement made with an admitting authority, be the fund maintained by the employing authority, or, as the case may be, by the joint committee or by the authority who were the admitting authority.

(2) In any case not falling within the preceding subsection, the appropriate superannuation fund in relation to the contributory employees of an employing authority shall be the superannuation fund maintained by the council of the county or county borough within which the area of the employing authority, or the greater part of the area of that authority, is situate :

Provided that, in any such case—

- (a) if the council of the county or, as the case may be, of the county borough are a local Act authority; or
- (b) if the Minister, on an application made to him before the appointed day, is satisfied, after consultation with the authorities appearing to him to be concerned, that it is expedient so to do,

the Minister may order that the contributory employees of any particular employing authority shall be entitled to participate in the benefits of the superannuation fund maintained by some other administering authority.

(3) If at any time the Minister is satisfied that the number of contributory employees entitled to participate in the benefits of the fund maintained by an administering authority who are the council of a county district is, and is likely to remain, below one hundred, he may order that those contributory employees shall be entitled to participate in the benefits of the superannuation fund maintained by the council of the county, or, if that

council are a local Act authority, or if the Minister for other reasons, after consultation with the authorities appearing to him to be concerned, deems it expedient, the superannuation fund maintained by some other administering authority, and the Minister shall include in his order all such directions as he deems necessary for the transfer of the superannuation fund of the first-mentioned authority and the liabilities thereof, and with respect to other consequential and incidental matters.

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5.—(1) If application for the purpose is made to an administering authority by undertakers exercising any of their powers within the area of the authority under any Act or statutory order, the authority may, on such terms and conditions as they think fit and with the approval of the Minister, admit any employee of the undertakers to participate in the benefits of the superannuation fund maintained by the authority, and, in that event, this Act shall have effect in relation to the undertakers and any employee so admitted as if the undertakers were a local authority and the employee were a contributory employee, and the undertakers shall have all such powers as may be necessary for the purpose of giving effect to the terms and conditions approved by the Minister.

Power to
admit em-
ployees of
statutory
undertakers
and certain
associations.

(2) An admission agreement made under paragraph (b) of subsection (3) of section five of the Act of 1922 and in force immediately before the appointed day shall, notwithstanding the repeal of that Act, continue in force as if made under this section, subject, however, to such modifications and adaptations as the parties concerned may, with the approval of the Minister, determine to be necessary for bringing it into accordance with the provisions of this Act.

(3) In relation to any person who immediately before the appointed day was subject to the Act of 1922 by virtue of such an admission agreement as is mentioned in the last preceding subsection, this Act shall, on and after the appointed day, have effect as if he were a contributory employee.

(4) Subsection (1) of this section shall not apply in the case of managers of a public elementary school maintained but not provided by a local education authority for elementary education, and, without prejudice to the rights of any such person as is mentioned in the last preceding subsection, no employee of any such

A.D. 1937. managers shall on or after the appointed day be admitted
— to participate in the benefits of a superannuation fund by
PART I. virtue of anything contained in an admission agreement
—*cont.* continued in force by this section.

(5) Where a local authority, who are a local supervising authority for the purposes of the Midwives Act, 1936, have made arrangements under subsection (1) of section one of that Act with a voluntary organisation for the employment of certified midwives by that organisation, the provisions of subsection (1) of this section shall apply in relation to that organisation and to midwives employed as aforesaid as they apply in relation to statutory undertakers and to employees of those undertakers.

**Contribu-
tions.**

6.—(1) Subject to the provisions of this Act, a contributory employee of an employing authority shall, at such intervals as the administering authority may determine, contribute to the appropriate superannuation fund—

(a) an amount equal to five per cent. of his remuneration under that employing authority in the case of—

(i) an officer being a designated employee who, without a disqualifying break of service, is at any time a contributory employee;

(ii) a servant;

(b) an amount equal to six per cent. of such remuneration as aforesaid, in the case of an officer not being such an officer as aforesaid :

Provided that a contributory employee who has attained the age of sixty-five years, or who, immediately before becoming such an employee, was by virtue of subsection (3) of section fifteen of the Act of 1922 exempted from liability to contribute under that section, shall not contribute under this subsection.

(2) An employing authority shall contribute to the appropriate superannuation fund in each year a sum (in this Act referred to as "the equivalent contribution") equal in amount to the sum which during the year has been contributed to the fund by the authority's contributory employees, and any sums payable into the fund by the authority by virtue of subsection (1) of section twenty-one of this Act, and any sums payable

into the fund by the authority, or the share properly attributable to them of any sums payable into the fund, in pursuance of an actuary's certificate given, or a scheme made, under section twenty-two of this Act.

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(3) An employing authority may deduct from the remuneration payable by them to a contributory employee the contributions payable by him to the appropriate superannuation fund, and, if and so far as deductions are not made from the remuneration of a contributory employee, the appropriate administering authority may recover any contributions payable by him as a simple contract debt in any court of competent jurisdiction, or may deduct any sum remaining due on account thereof from any payment by way of superannuation allowance.

(4) A contributory employee who receives any part of his remuneration otherwise than from the employing authority shall render to that authority within one month after the first day of each financial half-year a written statement of his receipts in respect of that part of his remuneration during the preceding financial half-year, together with a statutory declaration verifying the correctness of the statement.

(5) If, in consequence of his incapacity to continue to discharge efficiently the duties of his post, a contributory employee is transferred to another post at a reduced remuneration, or otherwise suffers a reduction of remuneration, he shall be entitled to continue to contribute to the superannuation fund the like amount as if his remuneration had not been reduced.

7.—(1) When a contributory employee attains the age of sixty-five years, he shall cease to hold his employment : Age of compulsory retirement.

Provided that the employing authority may with his consent extend his service for one year, or any less period, and so from time to time as they deem expedient.

(2) Notwithstanding anything in the preceding subsection, a contributory employee who had attained the age of sixty-five years before the appointed day, or who attains that age on, or within one month after, the appointed day, shall not cease by virtue of that subsection to hold his employment until the expiration of that month, and the power of the employing authority under that subsection to extend the service of an employee shall apply

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(3) An extension of service under this section shall not entitle an employee to reckon for purposes relating to superannuation any service rendered on or after the day on which he attained the age of sixty-five years or the appointed day, whichever may be the later.

*Superannuation allowances, return of contributions
and gratuities.*

Eligibility
for super-
annuation
allowance,
and scale
of allow-
ances.

8.—(1) Subject to the provisions of this Act, a contributory employee of an employing authority shall be entitled, on ceasing to be employed by them, to receive an annual superannuation allowance if he either—

- (a) has completed ten years' service and is incapable of discharging efficiently the duties of his employment by reason of permanent ill-health or infirmity of mind or body; or
- (b) has attained the age of sixty years and completed forty years' service; or
- (c) has attained the age of sixty-five years and completed ten years' service.

(2) The superannuation allowance to be made to a contributory employee under this Part of this Act shall be on the following scale, that is to say:—

- (a) in respect of every completed year of contributing service, one sixtieth of his average remuneration;
- (b) in respect of every year of non-contributing service, one one-hundred-and-twentieth of his average remuneration:

Provided that—

- (i) in the case of any particular employee, the employing authority may, on his becoming entitled to a superannuation allowance, resolve that there shall be substituted for the said fraction of one one-hundred-and-twentieth any larger fraction not exceeding one sixtieth;

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(ii) an employee shall be entitled, if he pays a sum or sums calculated in such manner and payable at such time or times as may be prescribed, to receive in respect of any year of non-contributing service a prescribed fraction of his average remuneration larger than one one-hundred-and-twentieth but not exceeding one sixtieth.

(3) No superannuation allowance under this Part of this Act shall exceed two-thirds of the employee's average remuneration.

(4) Every superannuation allowance under this Part of this Act shall be paid out of the appropriate superannuation fund, but any extra charge resulting from any resolution passed by an employing authority under proviso (i) to paragraph (b) of subsection (2) of this section shall be repaid to the fund by that authority.

Payment of any such allowance shall be made at such intervals, not being longer than three months, as the appropriate administering authority may determine.

(5) For the purposes of this section, the average remuneration of a contributory employee means the annual average of the remuneration received by him in respect of service rendered during the five years immediately preceding the day on which he ceases to hold his employment or the day on which he attains the age of sixty-five years, whichever is the earlier:

Provided that—

(a) the average remuneration of an employee who has attained the age of sixty-five years before the appointed day shall be calculated by reference to the five years immediately preceding the appointed day;

(b) an employee who on a reduction of his remuneration contributed under subsection (5) of section six of this Act at his former rate, and an employee whose remuneration was reduced or suspended by reason of his absence from duty owing to ill-health or injury, shall be deemed to have received the remuneration which he would have received but for the reduction or suspension; and

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(c) if a contributory employee in the whole-time employment of a single local authority becomes a contributory employee in the part-time employment of each of two or more authorities, then, if his remuneration in his whole-time employment becomes material for the purpose of calculating the superannuation allowance payable to him on his ceasing to hold one of his part-time employments, that remuneration shall for the purposes of the calculation be treated as attributable to those part-time employments and shall be apportioned between them.

(6) For the purposes of subsection (1) of this section, an employee's service shall be calculated by aggregating all periods of service.

(7) For the purposes of subsection (2) of this section—

(a) an employee's contributing service shall be calculated by aggregating all periods of such service;

(b) his non-contributing service shall be calculated by deducting from his service, calculated in accordance with the last preceding subsection, all completed years of contributing service; and

(c) if his non-contributing service as so calculated includes a fraction of a year, that fraction shall, if it amounts to or exceeds six months, be treated as a year, and in any other case be disregarded.

Allocation
of part of
superannua-
tion benefits
to wife or
husband.

9.—(1) The Minister may make rules for securing that, in such circumstances and subject to such conditions as to proof of good health and other matters as may be specified in the rules, a contributory employee who becomes entitled to a superannuation allowance under this Part of this Act on his ceasing to hold his employment otherwise than by reason of ill-health shall be allowed to surrender, as from the date on which he so ceases, in return for the benefits of the rules such part, not exceeding one-third, of the allowance as may be specified in the rules, and for enabling the appropriate administering authority to grant to the spouse of the employee a pension of such value as, according to

tables to be prepared from time to time by the Government Actuary, is actuarially equivalent at the said date to the value of that part of the allowance which is surrendered.

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(2) Any such pension as aforesaid shall be payable in respect of the period, if any, for which the spouse survives the employee.

(3) Where an employee takes advantage of the provisions of this section, subsection (4) of the last preceding section shall apply in relation to the reduced allowance and in relation to the pension granted to the spouse as if each of them were a separate superannuation allowance.

10.—(1) A contributory employee of an employing authority who, before becoming entitled to a superannuation allowance under this Part of this Act, ceases to be employed by that authority for any reason other than his voluntary resignation, or his resignation or dismissal in consequence of inefficiency or an offence of a fraudulent character or misconduct, shall be entitled to receive out of the appropriate superannuation fund a sum equal to the aggregate amount of his contributions to the fund, together with compound interest thereon, calculated to the date on which he ceased to hold his employment at the rate of three per cent. per annum with half-yearly rests.

Return of
contribu-
tions in cer-
tain cases.

(2) A contributory employee of an employing authority who, before becoming entitled to a superannuation allowance under this Part of this Act, ceases to be employed by them by reason of his voluntary resignation, or his resignation or dismissal in consequence of inefficiency, shall be entitled to receive out of the appropriate superannuation fund a sum equal to the aggregate amount of his contributions to the fund.

(3) If a contributory employee—

- (a) dies before becoming entitled to a superannuation allowance under this Part of this Act; or
- (b) having become entitled to such a superannuation allowance, dies before he has received by way thereof an amount equal to the aggregate

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—cont.

amount of his contributions to the appropriate superannuation fund, together with compound interest thereon calculated to the date on which he ceased to hold his employment at the rate of three per cent. per annum with half-yearly rests,

his legal personal representatives shall be entitled to receive out of the fund, in the first-mentioned case, the aggregate amount of his contributions to the fund, together with compound interest calculated as aforesaid to the date of his death and, in the second-mentioned case, either the said aggregate amount with compound interest as aforesaid calculated to the date on which he ceased to hold his employment, or, if he has received any payment by way of superannuation allowance, the difference between the total amount which he has so received and the said aggregate amount with compound interest as aforesaid :

Provided that, where an employee so dying has become entitled to a superannuation allowance but has surrendered a part thereof in accordance with rules made under the last preceding section, he shall for the purposes of this subsection be deemed to have received by way of superannuation allowance the like amount as he would have received but for the surrender.

(4) Where a contributory employee of an employing authority ceases to be employed by them in consequence of an offence of a fraudulent character, or ceases to be employed by them in consequence of misconduct and is not entitled to a superannuation allowance under this Part of this Act, the employing authority may, if they think fit, direct the return to him out of the appropriate superannuation fund of a sum equal to the whole or a part of the aggregate amount of his contributions to the fund, or, if he ceases to be employed in consequence of an offence of a fraudulent character, the payment out of that fund of an equivalent sum to his wife or family.

(5) In this section references to the aggregate amount of an employee's contributions to a superannuation fund include references to any contributions paid by him to any superannuation fund under this Part of this Act, or under the Act of 1922, or under a local Act scheme, and any sum paid by him into a superannuation fund under a scheme in force by virtue of subsection (3) of

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section twenty-eight of the Widows', Orphans' and Old Age Contributory Pensions Act, 1936, or the corresponding provisions of any Act repealed by that Act, and any sum paid by him by way of an additional contributory payment, but only in so far as any such contribution or sum has not been returned to him and is attributable to service which might have been reckoned for the purposes of superannuation allowance in respect of the employment which he has ceased to hold or in which he died, as the case may be.

(6) Notwithstanding anything in the foregoing provisions of this section, no payment shall be made thereunder to an employee of a local authority who leaves their employment in order to enter the employment of another local authority in such circumstances that a transfer value is payable in respect of him under the relevant provisions of Part III of this Act.

(7) An administering authority shall be under no obligation to make any payment under subsection (1) or subsection (2) of this section before the expiration of one year from the date on which the employee in question ceases to be employed or until a claim for payment has been made to them, whichever event first occurs.

11.—(1) On or after the appointed day, a local authority may grant to any employee, on his ceasing to be employed by them, a gratuity, by way either of a lump sum or of periodical payments, not exceeding, or not exceeding in the aggregate, an amount equal to twice the amount of the annual emoluments of the employment:

Gratuities.

Provided that this subsection shall not apply in the case of a contributory employee who is entitled to a superannuation allowance.

(2) If a contributory employee of an employing authority, who has not attained the age of compulsory retirement applicable in his case, ceases to be employed by them in consequence of his being permanently incapacitated by an injury sustained by him in the actual discharge of his duty and without his own default, and specifically attributable to the nature of his duty, the authority may grant to him, subject to such conditions as they think fit, such a gratuity by way either of a lump sum

A.D. 1937. or of periodical payments as they consider reasonable
 — having regard to all the circumstances of the case, in-
 PART I. cluding any statutory right to compensation or to a
 —cont. superannuation allowance under this Part of this Act:

Provided that, in the case of a gratuity granted under this subsection by way of periodical payments, an authority shall not in any year pay to the employee in respect of the gratuity any greater sum than would, together with any statutory compensation, or superannuation allowance under this Part of this Act, receivable in that year, be equal to the amount of any superannuation allowance which might have been granted to him on his attaining the age of compulsory retirement applicable in his case if he had continued to be a contributory employee of the authority until he attained that age and had continued to be remunerated at the same rate as immediately before the date of his injury.

(3) A gratuity granted under this section shall not be paid out of the superannuation fund.

Reckoning of service.

Reckoning
of contri-
buting and
non-
contributing
service, war
service,
and service
of persons
indirectly
employed.

12.—(1) A contributory employee shall be entitled to reckon as contributing service, in relation to the employment in respect of which he is a contributory employee,—

- (a) service in respect of which he was required to contribute to the appropriate superannuation fund;
- (b) in the case of a person who became a contributory employee on the appointed day, any service which immediately before that day he was entitled to reckon as contributing service for the purposes of the Act of 1922 in relation to his said employment; and
- (c) any other service which, by virtue of any of the provisions of this Act, or of any regulations made thereunder, is to be reckoned as contributing service:

Provided that, subject to the provisions of this Act, a contributory employee shall not be entitled to reckon as contributing service any service in respect of which

he has received a return of contributions under this Act or under the Act of 1922. A.D. 1937.

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—cont.

(2) A contributory employee of a local authority shall be entitled to reckon as non-contributing service any service which he is not entitled to reckon as contributing service.

(3) In the case of a contributory employee who left the employment of a local authority in order to serve in His Majesty's forces or the forces of the Allied or Associated Powers during the late war, the period during which he so served shall be taken into account for the purposes of the last preceding subsection as if it had been a period of service within the meaning of this Act :

Provided that no such service after the thirty-first day of December, nineteen hundred and twenty, shall be taken into account.

(4) Where a contributory employee had, under subsection (2) of section eight of the Act of 1922, paid before the appointed day part, but not the whole, of a sum in lieu of transfer value, account shall, for the purposes of the foregoing provisions of this section, be taken in the prescribed manner of the service by reference to which that sum was ascertained.

(5) For the purpose of calculating the superannuation allowance of a contributory employee employed whole-time in a single employment who has formerly served as a part-time employee, the period of part-time service shall be treated as though it were whole-time service for a proportionately reduced period.

(6) When a person who has been for a continuous period of not less than three years in the employment of an officer of a local authority, and engaged wholly or mainly in the performance of duties relating to the functions of that authority, enters or has entered the employment of that or any other local authority and is a contributory employee, there shall be taken into account in reckoning his non-contributing service so much, if any, of that period as the first authority under whom he becomes a contributory employee may, within one year from the date on which he becomes such an employee, determine.

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Reckoning
of contri-
buting ser-
vice under
two or more
local
authorities,
or in case of
re-employ-
ment by
the same
authority.

13.—(1) Where a contributory employee or local Act contributor under a local authority ceases to be employed by that authority, but within twelve months after so ceasing becomes a contributory employee under another local authority—

- (a) if the first-mentioned authority are not a local Act authority, he shall be entitled to reckon as contributing service all service which in relation to his employment under them he was entitled to reckon as such immediately before he ceased to be employed by them; and
- (b) in any other case, in computing his contributing service, account shall be taken in such manner as may be prescribed of his previous service :

Provided that an employee shall not be entitled to the benefit of this subsection unless he informs the employing authority within three months of entering upon his employment under them that he has previously served in the employment of another local authority, and pays to the appropriate administering authority an amount equal to any sum which, on his ceasing to serve under that other authority, was paid to him by way of return of contributions, whether with or without interest, under this Part of this Act or the local Act scheme.

(2) Where a contributory employee under a local authority ceases to be employed by them, but within twelve months after so ceasing again becomes such an employee under them, he shall, if he repays any sum which on his so ceasing was paid to him by way of return of contributions under this Part of this Act, whether with or without interest, be entitled to reckon as contributing service the service which he was entitled to reckon as such immediately before he ceased to be employed by them.

Provisions as to special classes of employees.

Holders of
joint ap-
pointments.

14. Where one of the holders of a joint appointment under a local authority ceases to hold his appointment and the appointment of the other is thereby determined, then that other, if he is a contributory employee and has either attained the age of fifty years or completed twenty years' service, shall be entitled to

receive a superannuation allowance according to the scale laid down by this Part of this Act :

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Provided that this section shall not apply in the case where a joint appointment of spouses is determined in consequence of the misconduct of one of them.

—
PART I.
—cont.

15. The provisions of Part I of the Second Schedule to this Act shall have effect in relation to such transferred poor law employees and transferred rating employees as are therein mentioned.

Transferred
poor law
and rating
employees.

16.—(1) In the case of female nurses, midwives and health visitors, being contributory employees, the age of compulsory retirement shall be sixty years instead of sixty-five years and, accordingly, throughout section seven of this Act sixty years shall be substituted for sixty-five years, and—

Female
nurses, mid-
wives and
health
visitors.

- (a) in the application of this Part of this Act to any such employee, in paragraph (b) of subsection (1) of section eight, fifty-five years shall be substituted for sixty years and thirty years for forty years, and, in paragraph (c) of the said subsection and throughout subsection (5) of the same section and in the definition of service contained in this Act, sixty years shall be substituted for sixty-five years; and
- (b) in the application of this Part of this Act to any female nurse or health visitor or any midwife not being such a midwife as is mentioned in paragraph (b) of subsection (3) of section two of the Midwives Act, 1936, in paragraph (c) of subsection (4) of section three, fifty years shall be substituted for fifty-five years :

Provided that the foregoing provisions of this subsection shall not apply to any nurse, midwife or health visitor who is employed as such on the appointed day unless within three months thereafter she gives notice in writing to the employing authority that she desires those provisions to apply to her.

(2) If a person to whom the provisions of paragraph (a) of the preceding subsection apply becomes entitled to a superannuation allowance under this Part of this Act on attaining the age of sixty years, and has not then completed forty years' service, the employing

A.D. 1937.

—
PART I.
—cont.

authority may grant to her an additional annual compensatory allowance not exceeding the difference between the superannuation allowance to which she is entitled and that to which she would have been entitled if the provisions of the said paragraph had not applied to her and she had remained in the employment of the authority until she attained the age of sixty-five years receiving an annual remuneration equal to the annual average of the remuneration received by her in respect of service rendered during the five years immediately preceding the day on which she attains the age of sixty years.

An additional compensatory allowance granted under this subsection shall not be paid out of the superannuation fund.

(3) In this section the expression "health visitor" means a woman appointed by a local authority as a whole-time employee whose duties include the visiting of women and children in their homes for the purpose of giving advice as to the nurture, care and management of young children and as to the health of expectant and nursing mothers, or the visiting of the homes of persons suffering from tuberculosis for the purpose of giving advice as to the care and hygiene of such persons and as to the measures necessary to prevent the spread of infection.

Teachers.

17.—(1) Notwithstanding anything in the definition of service contained in this Act or in the provisions of this Act relating to the reckoning of service, a contributory employee who, at any time before he became such an employee, was in service which is treated as recognised or contributory service under the Teachers (Superannuation) Acts, 1918 to 1937 (in this subsection referred to as the "Teachers Acts"), shall be entitled to reckon such service, if it is service in respect of which contributions were paid under the Teachers Acts, as contributing service, and in any other case as non-contributing service, but the amount receivable by him in any year in respect of superannuation allowance under this Part of this Act shall be reduced by a sum equivalent to the amount, if any, which is receivable by him in that year by virtue of the Teachers Acts, or would have been so receivable by him in that year but for any deduction made by the

Board of Education under section seven of the Teachers A.D. 1937.
(Superannuation) Act, 1925 :

Provided that—

PART I.

—cont.

15 & 16
Geo. 5. c. 59.

- (a) any period of such service in respect of which contributions have been repaid under the Teachers Acts shall be treated as a period of service in respect of which contributions were not paid;
- (b) in computing the reduction to be made under this subsection, account shall be taken in the prescribed manner of any sum paid or payable at any time under the Teachers Acts which was or is in the nature of a capital payment, or which represents a return of contributions in respect of a period of service which has been reckoned as contributing service in calculating the superannuation allowance payable under this Part of this Act; and
- (c) if a contributory employee has taken advantage of the provisions of section nine of this Act or of any corresponding provisions applicable in the case of teachers, the provisions of this subsection with respect to the reduction of allowances shall, in relation to him, have effect subject to such modifications as may be prescribed.

(2) Section seven of the Teachers (Superannuation) Act, 1925, shall not apply in relation to a superannuation allowance granted under this Part of this Act to such a contributory employee as is mentioned in the preceding subsection.

18. Where a local education authority have, by a resolution passed for the purposes of subsection (2) of section three of this Act, specified an employee of the managers of a non-provided school as a contributory employee, he shall be deemed for the purposes of this Act to be in the employment of that authority :

Employees
of managers
of non-
provided
schools.

Provided that, for the purposes of section seven of this Act (which relates to the age of compulsory retirement), the managers of the school shall be deemed to be the employing authority.

PART I.

—cont.

Clerks of
county
councils, and
clerks and
deputy clerks
of the peace
of counties.

Clerks and
assistant
clerks to
justices.

19. The provisions of Part II of the Second Schedule to this Act shall have effect with respect to clerks of county councils, clerks of the peace of counties and deputy clerks of the peace of counties.

20.—(1) On and after the appointed day, every whole-time justices' clerk shall for the purposes of this Act—

- (i) as respects each clerkship to county justices held by him, be deemed to be a contributory employee of the council of the county, unless that council are a local Act authority; and
- (ii) as respects each clerkship to borough justices held by him, be deemed to be a contributory employee of the council of the borough, unless that council are a local Act authority;

and the provisions of this Act shall have effect in relation to him as they have effect in relation to other contributory employees of the council, subject, however, to the modifications set out in Part III of the Second Schedule to this Act :

Provided that a person who on the appointed day holds a clerkship to justices may, unless immediately before that day he was subject in respect of that clerkship to the Act of 1922, by notice in writing given within three months after that day to the council of the county or borough concerned, elect that this Act shall not, during his tenure of the post, apply in relation to that clerkship.

(2) On and after the appointed day, an employee of a whole-time clerk to justices, who under the preceding subsection is, or but for an election made by him thereunder would be, deemed as respects any particular clerkship to be a contributory employee of the council of a county or borough, shall himself be deemed, as respects his employment for the purposes of that particular clerkship, to be a contributory employee of the same council, if he devotes substantially the whole of his time to assisting his employer in the discharge of functions appertaining to any clerkship or clerkships to justices held by the employer, and the provisions of this Act shall have effect in relation to him as they have effect in relation

to other contributory employees of the council, subject, however, to the modifications set out in Part III of the Second Schedule to this Act.

A.D. 1937.

—
PART I.
—cont

(3) A person shall not be deemed to be a contributory employee by virtue of the foregoing provisions of this section who—

- (a) is under the age of eighteen years; or
- (b) has attained the age of fifty-five years and has not completed, and cannot before attaining the age of compulsory retirement applicable in his case complete, ten years of service.

(4) In this section and in Part III of the Second Schedule to this Act the expression "whole-time justices' clerk" means a justices' clerk who devotes substantially the whole of his time either to the duties of one or more clerkships to justices or partly to such duties and partly to duties under one or more local authorities, and for the purposes of this definition the expression "clerkship to justices" includes a clerkship to justices of a county or a borough, notwithstanding that the council of the county or the borough are a local Act authority.

Management and valuation of funds.

21.—(1) If immediately before the appointed day an administering authority were maintaining a superannuation fund or funds under the Act of 1922, they shall close that fund or those funds and transfer any balance standing to the credit thereof to the superannuation fund to be maintained by them under this Part of this Act, and any outstanding or continuing liabilities of, or liabilities of any authority or individual to, the former fund or funds shall become liabilities of or to the latter fund.

Manage-
ment of
superannua-
tion fund,
and use and
investment
of moneys.

(2) There shall be carried and credited in each year to every superannuation fund maintained under this Part of this Act—

- (a) the amounts contributed during the year by the contributory employees entitled to participate in the benefits of the fund;
- (b) the equivalent contributions payable into the fund by employing authorities;

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PART I.

—cont.

- (c) any equal annual charge or other amount payable into the fund by any employing authority by virtue of the transfer and continuance of liabilities effected by the preceding subsection;
- (d) any amounts payable into the fund in pursuance of an actuary's certificate given, or a scheme made, under the next succeeding section;
- (e) all dividends and interest arising during the year out of the investment or use of the fund or any part thereof, and any capital moneys resulting from the realisation of investments, or from the repayment of moneys used temporarily for other authorised purposes;
- (f) the amount of any transfer values, contributions towards the superannuation allowances of mental hospital employees, or additional contributory payments, received by the administering authority under this Act; and
- (g) any other sums which the administering authority may become liable to carry to the fund under this Act.

(3) If any moneys forming part of a superannuation fund maintained under this Part of this Act are not for the time being required to meet payments to be made out of the fund under this Act, the administering authority shall invest the moneys in securities in which trustees are authorised to invest, or, in lieu of such investment, may use the moneys for any purpose for which they have a statutory borrowing power, or may lend the moneys to any other employing authority contributing to the fund for use for any purpose for which that authority have a statutory borrowing power, subject to the following conditions, that is to say :—

- (a) interest shall be paid to the fund on any moneys so used and for the time being not repaid at such rate per cent. per annum as may be determined by the administering authority to be equal, as nearly as may be, to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power; and

- (b) the statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power.

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—
PART I.
—cont.

22.—(1) As soon as may be after the passing of this Act, a local authority who are to be an administering authority, and are not maintaining a superannuation fund under the Act of 1922, shall obtain from an actuary a certificate as to the amount necessary to be paid annually into the superannuation fund to be maintained by them under this Part of this Act during a period not exceeding forty years from the appointed day in order that the fund may be solvent, and as to the part, if any, of such amount which is attributable to any other employing authority whose employees are to be contributory employees entitled to participate in the benefits of the fund.

Actuary's
certificates
and
periodical
valuation of
superannu-
ation fund.

(2) As soon as may be after the appointed day, an administering authority who were maintaining a superannuation fund under the Act of 1922 shall obtain from an actuary a certificate as to the amount, if any, by which any sum payable annually into the superannuation fund maintained by them under this Part of this Act as a result of the transfer and continuance of liabilities effected by subsection (1) of the last preceding section should be increased on account of the burden to be imposed on that fund as from the appointed day by, or under, the provisions of this Act :

Provided that an administering authority need not take action under this subsection if their fund will under the next succeeding subsection be valued as at some date not later than the thirty-first day of March, nineteen hundred and forty, or if they satisfy the Minister that such action is for any other reason unnecessary.

(3) Every administering authority shall—

(a) if they were maintaining a superannuation fund or funds under the Act of 1922—

(i) upon, or at any time before, the expiration of a period of five years from the end of the financial year comprising the date as at which that fund, or the earliest date as at which any of those funds, was last valued under the Act of 1922; or

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PART I.
—*cont.*

(ii) if there has been no such valuation under the Act of 1922, upon, or at any time before, the expiration of a period of five years from the end of the financial year comprising the date on which that fund, or the earliest date on which any of those funds, was established;

(b) if they were not maintaining a superannuation fund under the Act of 1922, upon, or at any time before, the expiration of the financial year ending on the thirty-first day of March, nineteen hundred and forty-four; and

(c) in all cases, upon the expiration of any period of five years from the end of the financial year comprising the date as at which the fund was last valued under this Act,

obtain from an actuary within the prescribed period an actuarial valuation of, and a report on, the assets and liabilities of the fund in such form and containing such information as may be prescribed.

Every valuation under this subsection shall be a valuation as at the end of a financial year.

(4) An administering authority may at any other time obtain a valuation and report under this section.

(5) An administering authority shall, forthwith upon receipt of any valuation or report under this section, send a copy thereof to the Minister.

(6) Where by any valuation and report under this section a deficiency or a disposable surplus is disclosed, the administering authority shall, within three months after receiving the valuation and report, make a scheme for making good the deficiency or, as the case may require, for disposing of the surplus.

General.

Allowances,
&c. not
assignable.

23. A superannuation allowance or gratuity, or a pension to a spouse, granted under this Part of this Act shall be payable to, or in trust for, the person to whom it is granted, and shall not be assignable or chargeable with his debts or other liabilities.

Forfeiture
of rights in
certain
cases.

24. A contributory employee who is dismissed or resigns, or otherwise ceases to hold his employment, in consequence of an offence of a fraudulent character or of

grave misconduct shall forfeit all claim to any rights under this Part of this Act in respect of his previous service.

A.D. 1937.

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PART I.
—cont.

25.—(1) Where a local Act or statutory order in force in the area of a local authority contains provisions amending, supplementing, modifying or adapting the provisions of the Act of 1922 in its application to that authority, the authority may make a scheme for continuing in force and applying to this Act, with any necessary modifications and adaptations, such of those provisions of the local Act or statutory order as the authority desire to preserve notwithstanding the repeal by this Act of the Act of 1922.

Adaptation to this Act of certain provisions of local Acts and of provisions of certain schemes.

A scheme made by an authority under this subsection shall be submitted to the Minister within six months from the passing of this Act.

(2) Where a scheme made under section twenty-four of the Act of 1922 (whether by a local authority, or by a Joint Electricity Authority by virtue of section thirty-three of the Electricity (Supply) Act, 1926), or under subsection (3) of section twenty-eight of the Widows', Orphans' and Old Age Contributory Pensions Act, 1936, or the corresponding provisions of any Act repealed by the last-mentioned Act, contains provisions modifying or adapting the provisions of the Act of 1922 in its application to an authority, the scheme shall continue in force subject to such modifications and adaptations as the authority may, with the approval of the Minister, determine to be necessary for making it applicable to this Act.

16 & 17
Geo. 5. c. 51.

PART II.

SUPERANNUATION OF EMPLOYEES OF LOCAL ACT AUTHORITIES.

26.—(1) A local Act authority shall, not later than twelve months before the appointed day, make a scheme for modifying their local Act scheme so as to secure that on and after the appointed day—

Modifica-
tion or re-
placement
of local Act
superannua-
tion
schemes.

- (a) the following persons shall, subject to the provisions of this section and to the provisions of Part III of this Act relating to officers appointed

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PART II.

—cont.

in a temporary capacity, be entitled to participate in the benefits of their superannuation fund, that is to say—

- (i) every whole-time officer of the authority ;
 - (ii) every registration officer acting in or for a district in relation to which they discharge registration functions ;
 - (iii) every person in their employment on the appointed day who was immediately before that day subject as a transferred poor law employee to the Act of 1896, and every person who ceased before the appointed day to be so subject but, on or after the appointed day and within twelve months from the date on which he so ceased, enters their employment ;
 - (iv) every person in their employment on the appointed day who was immediately before that day subject as a transferred rating employee to the Act of 1896 ; and
 - (v) every transferred poor law employee who is at any time, without a disqualifying break of service, in their employment after having been subject to another local Act scheme with the benefit of such provisions as are mentioned in the next succeeding paragraph, or after having been a contributory employee with the benefit of the provisions of paragraph 3 of Part I of the Second Schedule to this Act ;
- (b) so far as is reasonably practicable, the benefits of their superannuation fund shall be so adapted in relation to such persons as are mentioned in sub-paragraphs (ii) to (v) of the last preceding paragraph that they shall enjoy rights not substantially less favourable, and be subject to liabilities not substantially more onerous, than those which they would enjoy, and to which they would be subject, if they were in the employment of an employing authority under Part I of this Act ;
- (c) a person who becomes subject to their local Act scheme, after being a contributory employee or local Act contributor under another local authority, shall, in respect of the reckoning

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PART II.
—*cont.*

of previous service, enjoy, so far as is reasonably practicable, rights substantially similar to those which he would enjoy as a contributory employee of a local authority whose employment he had entered after being a contributory employee of another local authority; and

(d) due provision is made for any consequential or incidental matters.

(2) The following persons shall not be entitled to the benefit of the preceding subsection, that is to say, a person who—

(a) is such a person as is mentioned in Part II of the First Schedule to this Act;

(b) is under the age of eighteen years or, as the case may be, such other age as is, in accordance with the local Act scheme or the practice of the authority, the minimum age for entry into superannuable service; or

(c) has attained such an age that he cannot under the provisions (if any) of the local Act scheme or the practice of the authority, relating to qualifying periods of service and the age of compulsory retirement, become entitled to a superannuation allowance :

Provided that paragraph (c) of this subsection shall not have effect in relation to such persons as are mentioned in sub-paragraphs (ii) to (v) of paragraph (a) of the preceding subsection or such a midwife as is mentioned in paragraph (b) of subsection (3) of section two of the Midwives Act, 1936.

(3) A scheme made by an authority under subsection (1) of this section may provide that any provisions of their local Act scheme or any practice of the authority, relating to medical examination of employees or prospective employees, shall (unless the authority otherwise determine) continue to have effect in relation to such persons as are mentioned in paragraph (a) of the said subsection (1), not being such persons as are mentioned in sub-paragraphs (ii) to (v) of that paragraph.

(4) A local Act authority may, by a statutory resolution, determine to substitute the provisions of Part I of this Act and a superannuation fund maintained thereunder for their local Act scheme, and, if

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—
PART II.
—cont.

they so determine, shall make a scheme for giving effect to their resolution, and shall include in the scheme such modifications and adaptations of this Act as may be required and such consequential and incidental provisions, including provisions for the transfer of their local Act superannuation fund and the liabilities thereof and for protecting adequately the rights and interests of the various parties interested in the local Act scheme, as they may think necessary.

PART III.

MISCELLANEOUS AND GENERAL PROVISIONS.

Registration
officers.

27.—(1) Every registration officer shall be deemed, for the purposes of this Act and of any local Act scheme, to be an officer in the employment of the local authority discharging registration functions in relation to the district in or for which the officer acts:

Provided that nothing in this Act shall affect any power of the Registrar-General to remove a registration officer from office.

(2) The provisions of Part IV of the Second Schedule to this Act shall have effect with respect to such registration officers as are therein mentioned.

Mental
hospital
employees.

28. The provisions of Part V of the Second Schedule to this Act shall have effect with respect to such mental hospital employees as are therein mentioned.

Payment of
transfer
values.

29.—(1) Where a contributory employee or local Act contributor under a local authority ceases to be employed by them, but within twelve months after so ceasing becomes a contributory employee or a local Act contributor under another local authority, then, unless the superannuation fund concerned is the same in the case of both employments, a transfer value calculated in the prescribed manner shall be payable by the authority maintaining the fund relating to the former employment to the authority maintaining the fund relating to the latter employment.

(2) Such a transfer value as aforesaid shall also be payable, unless only one superannuation fund is concerned, where a contributory employee or local Act contributor in the whole-time employment of a single local authority ceases to be so employed by them

and becomes a contributory employee or local Act contributor in their part-time employment and a contributory employee or local Act contributor in the part-time employment of another local authority.

A.D. 1937.

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PART III.
—cont.

30.—(1) Where a whole-time officer of a local authority, being an authority specified in Part I of the First Schedule to this Act, has been, on or after or within two years before the appointed day, appointed to a post in their employment in a temporary capacity for a period of not more than two years, then, notwithstanding anything in the foregoing provisions of this Act but subject to the following provisions of this section, he shall not, by virtue of being a whole-time officer, become a contributory employee or local Act contributor under that authority unless the authority at any time otherwise resolve :

Whole-time
officers
appointed
in a tem-
porary
capacity.

Provided that nothing in this subsection shall have effect in relation to any employee of an authority who has been in their employment for a period (whether continuous or not) of two years or has been at any time subject to the Act of 1896 or subject to the Act of 1922 or a contributory employee or a local Act contributor.

(2) Where a whole-time officer of a local authority who, by virtue of the preceding subsection, has not become a contributory employee or local Act contributor has been in the employment of that authority or of any other authority specified in Part I of the First Schedule to this Act for a period (whether continuous or not) of two years, then, on the expiration of that period, if he would but for the provisions of the preceding subsection be a contributory employee or local Act contributor under the authority in whose employment he is, he shall, by virtue of this subsection, thereupon become a contributory employee or local Act contributor, as the case may be, under the last-mentioned authority.

(3) If a whole-time officer of a local authority who, by virtue of subsection (1) of this section, has not become a contributory employee or local Act contributor ceases to be employed by them and within twelve months after so ceasing becomes a whole-time officer of another local authority, being an authority specified in Part I of the First Schedule to this Act, then, if at that time or later he becomes, by virtue of the last preceding subsection or otherwise, a contributory employee or local

A.D. 1937. Act contributor under that other local authority, a transfer value calculated in the prescribed manner shall, unless the superannuation fund concerned is the same in the case of both employments, be payable by the authority maintaining the fund relating to the former employment to the authority maintaining the fund relating to the latter employment.

PART III.
—cont.

Reduction
of super-
annuation
allowance
during re-
employ-
ment and
adjustment
of rights
thereafter.

31.—(1) If a person entitled to a superannuation allowance under Part I of this Act, other than an allowance payable to him in respect of service rendered without a disqualifying break of service as a designated employee and a contributory employee, proposes to accept further employment with any local authority, he shall inform that authority that he is so entitled and, if he enters their employment, shall forthwith give notice in writing that he is so employed to the authority from whom he receives the allowance.

(2) In any such case as aforesaid, the superannuation allowance shall, so long as the employee holds his new employment, be reduced in such manner as may be prescribed, and, if in that employment he is a contributory employee or local Act contributor, then, on his ceasing to hold that employment, he shall be entitled, notwithstanding anything in the definition of service contained in this Act or in the provisions of this Act relating to the reckoning of service, or, as the case may be, notwithstanding any corresponding definition in, or provisions of, the local Act scheme, to such rights in respect of superannuation benefits as may be prescribed.

Part repeal
of 59 & 60
Vict. c. 50
and 29 & 30
Vict. c. 31.

32. As from the appointed day—

- (a) the Poor Law Officers' Superannuation Act, 1896, shall cease to apply to any transferred poor law employee or transferred rating employee;
- (b) the Superannuation (Metropolis) Act, 1866, shall cease to have effect, except in so far as its provisions have been applied by other enactments:

Provided that—

- (i) nothing in this section shall affect the power of an authority or body to whom

the said Act of 1866 applies to grant an allowance in accordance with the provisions of that Act to a servant who was in their employment on the appointed day and who, without having become a contributory employee or local Act contributor, ceases to hold his employment under them;

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PART III.
—*cont.*

- (ii) without prejudice to the general application of section thirty-eight of the Interpretation Act, 1889, nothing in this section shall affect the rights of any person who has before the appointed day become entitled to a superannuation allowance under the said Act of 1896 or been granted an allowance under the said Act of 1866.

52 & 53 Vict.
c. 63.

33.—(1) Subsection (3) of section twenty-eight of the Widows', Orphans' and Old Age Contributory Pensions Act, 1936 (which relates to the modification of existing superannuation schemes), shall have effect as if—

Amendment
of 26 Geo. 5
& 1 Edw. 8.
c. 33, s. 28
(3).

- (a) for the words “after giving persons affected
“ by the proposed scheme or their representa-
“ tives an opportunity of objecting ” there were
substituted the words “after satisfying himself
“ that persons affected by the proposed scheme
“ or their representatives have had an oppor-
“ tunity of objecting ”;

- (b) after the words “confirm the scheme” there were inserted the words “either with or without modifications ”; and

- (c) at the end of the subsection there were inserted the following paragraph:—

“A scheme confirmed under the provisions of this subsection may be revoked or amended by a subsequent scheme submitted and confirmed in like manner as the original scheme.”

(2) For the purposes of the said subsection (3), this Act shall be deemed to be such a public general Act as is therein referred to.

A.D. 1937.

PART III.

—*cont.*Central
Electricity
Board and
Joint
Electricity
Authorities.

34.—(1) Where a Joint Electricity Authority have before the appointed day adopted the provisions of the Act of 1922 by virtue of section thirty-three of the Electricity (Supply) Act, 1926, this Act shall have effect in relation to the Authority as if the Authority were a local authority required to maintain a superannuation fund under Part I of this Act, and, in relation to any employee of the Authority (including an employee who had become subject as an officer or servant to the Act of 1922), as if the Authority were a local authority not being either a local authority specified in Part I of the First Schedule to this Act or a local Act authority.

(2) As from the appointed day there shall be substituted for the said section thirty-three, so far as it extends to England, the following section:—

“ 33. The Board, or a Joint Electricity Authority whose district is situate wholly or partly in England, may (without prejudice in the case of any such Authority to the provisions contained in subsection (2) of section eight of the Electricity (Supply) Act, 1919) adopt the provisions of Part I of the Local Government Superannuation Act, 1937, and, if they do so, that Act shall have effect in relation to the Board or Authority as if they were a local authority required to maintain a superannuation fund under Part I of that Act, and, in relation to any employee of the Board or Authority, as if the Board or Authority were a local authority within the meaning of that Act not being either a local authority specified in Part I of the First Schedule thereto or a local Act authority within the meaning of that Act.”

(3) If, at the date when a Joint Electricity Authority adopt the provisions of Part I of this Act, they have in force a superannuation scheme made under subsection (2) of section eight of the Electricity (Supply) Act, 1919, they shall forthwith make a scheme making such modifications and adaptations of this Act in its application to them and to their employees, and containing such consequential and incidental provisions, including provisions for the transfer of their existing superannuation fund and the liabilities thereof and for protecting adequately

9 & 10
Geo. 5. c.100.

the rights and interests of persons interested in the original scheme, as they think necessary.

A.D. 1937.

PART III.

—cont.

Decision of
questions,
and appeals
to the
Minister.

35. Any question concerning the rights or liabilities of an employee of a local authority, or of a person claiming to be treated as such an employee, under any of the provisions of Part I or this Part of this Act, or any regulations made under this Act, shall be decided in the first instance by the authority concerned, and if the employee is dissatisfied with any such decision or with the authority's failure to come to a decision, shall be determined by the Minister, and the Minister's determination shall be final :

Provided that the Minister may at any stage of the proceedings on the reference to him, and shall, if so directed by the High Court, state in the form of a special case for the opinion of the High Court any question of law arising in those proceedings.

36.—(1) A scheme made under this Act shall be of no effect unless it has been approved by the Minister, and the Minister may approve any such scheme either with or without modifications.

Schemes,
rules and
regulations.

Before approving any such scheme, the Minister shall consult with such organisations as are in his opinion representative of the interests concerned.

(2) Where any such scheme is so approved, this Act and any other Act affected by the scheme shall have effect subject to the provisions of the scheme.

(3) The Minister may extend the time within which any scheme under this Act may be or is to be made or submitted.

(4) If a local authority or other body required by this Act to make a scheme fail to make and submit to the Minister a scheme satisfactory to him within six months from the time when the requirement takes effect, or within such further period as the Minister may allow, the Minister may himself make a scheme, and a scheme so made by him shall have effect as if it were a scheme made by the authority or other body concerned and approved by him.

(5) Subject to the provisions of this Act, a scheme made under this Act may be amended by a subsequent scheme :

A.D. 1937.

PART III.
—cont.

Provided that, if the original scheme was made by the Minister, it may be amended either by a scheme made by him or by a scheme made by the authority or other body concerned and approved by him.

(6) The Minister may make regulations for prescribing anything which under this Act is to be prescribed, and with respect to such administrative action to be taken by local authorities as is mentioned in the Third Schedule to this Act.

(7) Any scheme approved, and any regulation, rule or scheme made, by the Minister under this Act shall be laid forthwith before each House of Parliament for a period of thirty days during the Session of Parliament and, if an address is presented to His Majesty by either House before the expiration of that period praying that the scheme, regulation or rule may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder, or to the making of a new scheme, regulation or rule :

Provided that, in reckoning any such period of thirty days as aforesaid, no account shall be taken of any time during which both Houses are adjourned for more than four days.

Saving for certain provisions relating to compensation for loss of office.

15 & 16 Geo. 5.
c. 90.
19 & 20 Geo. 5.
c. 17.

Reciprocal arrangements between England and Scotland.

37. Nothing in this Act shall affect the operation of paragraph 8 of the Sixth Schedule to the Rating and Valuation Act, 1925, or of paragraph 11 of the Eighth Schedule to the Local Government Act, 1929 (which relate to certain cases of compensation for loss of office), or of any corresponding provisions in any other Act, or any statutory order or statutory scheme.

38.—(1) If the Secretary of State and the Minister are satisfied that the provisions of any Act for the time being in force in Scotland with respect to the superannuation of employees of local authorities are substantially similar to the provisions of this Act, they may make regulations with respect to the rights and liabilities of a person who leaves the employment of a local authority within the meaning of the Scottish Act and enters the employment of a local authority within the meaning of this Act, or leaves the employment of a local authority within the meaning of this Act and enters the employment of a local authority within the meaning of the Scottish Act, and with respect to the rights and liabilities of the local authorities concerned.

(2) The provisions of subsection (7) of section thirty-six of this Act shall apply in relation to regulations made under this section as they apply in relation to regulations made by the Minister.

A.D. 1937.

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PART III.
—cont.

39.—(1) The provisions of sections thirteen and twenty-nine of this Act with respect to contributory employees who cease to be employed by a local authority but become contributory employees under another local authority, or again become such employees under the same authority, shall also have effect in the case of a designated employee who ceased before the appointed day to be subject to the Act of 1922, but, on or after the appointed day and within twelve months after so ceasing, becomes a contributory employee. Transitional provisions.

(2) In the case of any such designated employee as aforesaid, references in any of the said provisions to contributions returned under Part I of this Act, and to service which may be reckoned as contributing service under that Part, shall be construed as including references to contributions returned under the Act of 1922 and service which might be reckoned as contributing service under that Act.

(3) If in calculating the amount of a superannuation allowance to be granted to a contributory employee, being also a designated employee, it is necessary to take account of his remuneration in respect of any period of service rendered before the appointed day, his remuneration in respect of that period shall not be taken to be less than the amount of the remuneration by reference to which he contributed in respect of that period to a superannuation fund maintained under the Act of 1922.

40.—(1) In this Act, unless the context otherwise requires— Inter-pretation.

“ Act ” includes a local Act;

“ Act of 1896 ” means the Poor Law Officers’ Superannuation Act, 1896;

“ Act of 1922 ” means the Local Government and other Officers’ Superannuation Act, 1922;

“ actuary ” means a Fellow of the Institute of Actuaries or of the Faculty of Actuaries in Scotland;

A.D. 1937.

PART III.

—*cont.*

“additional contributory payment” means a payment or repayment made either under this Act or under the Act of 1922 or under a local Act scheme, as a condition of being entitled to reckon any service, either as service generally or as service of a particular character, or a payment made for the purposes of proviso (ii) to paragraph (b) of subsection (2) of section eight of this Act;

“administering authority” has the meaning assigned to it by section one of this Act;

“admission agreement” means an agreement made under subsection (3) of section five of the Act of 1922;

“admitting authority” means the local authority who under an admission agreement have admitted employees of another employing authority to participate in the benefits of the superannuation fund maintained by the first-mentioned authority;

“appointed day” means the first day of April, nineteen hundred and thirty-nine;

“combination scheme” means a scheme of combination under subsections (1) and (2) of section five of the Act of 1922 or under section two of this Act;

“contributing service” in relation to any person means service which he is entitled to reckon as contributing service in accordance with the provisions of section twelve of this Act;

“contributory employee” has the meaning assigned to it by section three of this Act;

“designated employee” means a person who before the appointed day had been, or had been treated by a local authority as being, an officer or servant to whom the Act of 1922 applied;

“disqualifying break of service” in relation to any person means a continuous period of twelve months or longer during no part of which he was a contributory employee or local Act contributor or subject to the Act of 1922;

“employee” means an employee whether permanent or temporary, but does not include a person whose employment is of a casual nature;

“employing authority” has the meaning assigned to it by section one of this Act;

“employment” includes office;

“equivalent contribution” has the meaning assigned to it by section six of this Act;

“local Act” includes a provisional order confirmed by Parliament;

“local Act authority” has the meaning assigned to it by section one of this Act;

“local Act contributor” means a person in the employment of a local Act authority who on or after the appointed day is entitled to participate in the benefits of a superannuation fund maintained under a local Act scheme;

“local Act scheme” has the meaning assigned to it by section one of this Act;

“local authority” means the council of a county, county borough, metropolitan borough or county district, the common council of the City of London, and any other local authority within the meaning of the Local Loans Act, 1875, and includes a joint committee established by a combination scheme, and any other joint committee appointed under an Act, or a statutory order or statutory scheme, if all the constituent authorities are such local authorities as aforesaid;

“mental hospital employee” means such a person as is mentioned in paragraph 1 of Part II of the First Schedule to this Act;

“Minister” means the Minister of Health;

“non-contributing service” in relation to any person means service which he is entitled to reckon as non-contributing service in accordance with the provisions of section twelve of this Act;

“officer” means an employee as to whom either of the following conditions is satisfied, that is to say:—

(a) that his duties are wholly or mainly administrative, professional or clerical; or

A.D. 1937.

—
PART III.
—cont.

38 & 39 Vict.
c. 83.

A.D. 1937.

PART III.

—cont.

26 Geo. 5. &

1 Edw. 8.

c. 32.

(b) that his remuneration is at a rate greater than two hundred and fifty pounds per annum and that he is not an employed contributor within the meaning of the National Health Insurance Act, 1936;

“part-time officer” means an officer other than a whole-time officer;

“prescribed” means prescribed by regulations made by the Minister;

“registration officer” means a superintendent registrar or registrar of births and deaths, and includes a registrar of births and deaths exercising any of the functions of a registrar of marriages and a person appointed by a local authority to act as a deputy superintendent registrar or deputy registrar of births and deaths;

“remuneration” means all salary, wages, fees, poundage and other payments paid or made to an employee as such for his own use, and includes the money value of any apartments, rations or other allowances in kind appertaining to his employment, but does not include payments for overtime, or any allowance paid to him to cover cost of office accommodation or clerks’ assistance, or any travelling or subsistence allowance or other moneys to be spent, or to cover expenses incurred by him, for the purposes of his employment;

“servant” means an employee who is not an officer;

“service” means service rendered to any local authority after attaining the age of eighteen years and before attaining the age of sixty-five years, and includes, in the case of a contributory employee who first became subject to provision for superannuation on the appointed day and had then attained the age of sixty-five years, service rendered after attaining that age and before the appointed day, but does not include service in any employment if the person in question has already become entitled in respect of that service in that employment to a superannuation allowance under this or any other Act;

“statutory order” means an order, rule, or regulation made under an enactment;

A.D. 1937.

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PART III.
—cont.

“statutory resolution” means, in relation to a local authority, a resolution passed in the manner in which an ordinary resolution of the authority may be passed, except that twenty-eight days’ notice of the meeting at which the resolution is passed, and of the terms of the resolution and of the fact that it is to be proposed at that meeting, must have been given in the manner in which notice for convening ordinary meetings of the authority may be given;

“transferred poor law employee” means a person who, by virtue of his employment under a poor law authority, was transferred by the Local Government Act, 1929, to the employment of the council of a county, county borough or metropolitan borough, or of the common council of the City of London, and includes a registration officer who, for superannuation purposes, was under that Act deemed to be a person so transferred;

“transferred rating employee” means a person who, by reason of his holding such an office, or performing such duties, as are mentioned in subsection (1) or subsection (2) of section forty-eight of the Rating and Valuation Act, 1925, was transferred by or under that Act to the employment of a rating authority or assessment committee, and includes a person who, by reason of his holding a similar office or performing similar duties, had previously been transferred by the corresponding provisions of some local Act to the employment of a local authority;

“whole-time officer” means, in relation to any local authority, an officer who devotes substantially the whole of his time to their employment, and includes an officer who is employed by them for a part only of his time but devotes substantially the whole of the rest of his time to employment by one or more other local authorities.

(2) Unless the context otherwise requires, references in this Act to employees of a local authority include references to persons who are deemed for the purposes of this Act to be in the employment of the authority, and other provisions relating to employment by or under a local authority shall be construed accordingly.

A.D. 1937.

PART III.
—cont.

(3) Where an employee holds under a local authority two or more separate employments of such a nature that he can cease to hold one without ceasing to hold the other or others, the provisions of this Act shall, unless the context otherwise requires, apply as respects him in relation to each of those separate employments as if the other or others were an employment or employments held by him under another authority.

Repeals and
construction
of refer-
ences.

41.—(1) The enactments mentioned in the Fourth Schedule to this Act are hereby repealed as from the appointed day to the extent specified in the third column of that Schedule.

(2) References in the Local Government and Civil Service (Superannuation) Rules, 1936, and the Unemployment Assistance Board (Superannuation) Rules, 1935, to persons who are, or to persons who were, subject to the Local Government and other Officers' Superannuation Act, 1922, or to that Act as modified by section one hundred and twenty-four of the Local Government Act, 1929, shall be construed—

- (a) in the case of references to persons who are so subject, as references to persons who are contributory employees under Part I of this Act, and
- (b) in the case of references to persons who were so subject, as including references to persons who were contributory employees under Part I of this Act.

Short title
and extent.

42.—(1) This Act may be cited as the Local Government Superannuation Act, 1937.

(2) Section thirty-eight of this Act shall extend to Scotland but, save as aforesaid, this Act shall not extend to Scotland nor shall it extend to Northern Ireland.

(3) The Minister may by order direct that this Act shall, subject to such exceptions, adaptations, and modifications, if any, as may be specified in the order, apply to the Isles of Scilly, but except as so applied this Act shall not apply to the said Isles.

The Minister may by order from time to time amend any order previously made under this subsection.

SCHEDULES.

A.D. 1937.

FIRST SCHEDULE.

Sections 1, 3,
26, 30, 34,
40.

PART I.

LOCAL AUTHORITIES WHOSE WHOLE-TIME OFFICERS ARE
TO BE COMPULSORILY SUPERANNUABLE.

The council of a county, county borough, metropolitan borough or county district.

The common council of the City of London.

A joint board or joint committee appointed under any Act, or any statutory order or statutory scheme, if all the constituent authorities are such councils as aforesaid.

A joint committee established by a combination scheme.

An assessment committee.

Any other local authority as respects whom the Act of 1922 was in operation immediately before the appointed day.

PART II.

EMPLOYEES NOT BECOMING CONTRIBUTORY EMPLOYEES OR
LOCAL ACT CONTRIBUTORS.

1. A person employed in and in the service of an institution within the meaning of the Mental Treatment Act, 1930, or in and in the service of a certified institution for defectives within the meaning of the Asylums and Certified Institutions (Officers Pensions) Act, 1918, not being a person who was immediately before the appointed day subject to the Act of 1896. 20 & 21
Geo. 5. c. 23.

2. A person who is a professional fireman within the meaning of the Fire Brigade Pensions Act, 1925, whether or not the provisions of that Act have effect in relation to him. 8 & 9
Geo. 5. c. 33.

3. A chaplain who is a person to whom the Clergy Pensions Measures, 1926 to 1936, apply. 15 & 16
Geo. 5. c. 47.

4. A person who is in service which is contributory service within the meaning of the Teachers (Superannuation) Acts, 1918 to 1937.

A.D. 1937.

SECOND SCHEDULE.

PROVISIONS AS TO SPECIAL CLASSES OF EMPLOYEES.

PART I.

TRANSFERRED POOR LAW EMPLOYEES AND TRANSFERRED RATING
EMPLOYEES.Sections 3,
15, 26.

1. In this Part of this Schedule—
the expression “local authority” means a local authority other than a local Act authority; and
the expression “the Act of 1929” means the Local Government Act, 1929.
2. A transferred poor law employee who—
 - (a) was on the appointed day in the employment of a local authority and, having remained subject to the Act of 1896 by virtue of the Act of 1929, was immediately before that day still subject to the Act of 1896; or
 - (b) having remained subject to the Act of 1896 by virtue of the Act of 1929, ceased before the appointed day to be so subject but, on or after the appointed day and within twelve months after he so ceased, and without having become in the interval subject to the Act of 1922, enters the employment of a local authority; or
 - (c) having remained subject as a registration officer to the Act of 1896 by virtue of the Act of 1929, ceased before the appointed day to be so subject, but was on the appointed day in office as a registration officer,

shall, by virtue of this paragraph, become a contributory employee on the appointed day or (as the case may be) when he enters as aforesaid the employment of a local authority, and be a contributory employee whenever he is, without a disqualifying break of service, in the employment of any local authority.

3. While any such person as aforesaid is a contributory employee by virtue of the last preceding paragraph, Part I of this Act shall, in its application to him, have effect subject to the following modifications, that is to say—

- (a) any service before the date when he first became subject to that Part which immediately before the appointed day, or, as the case may be, immediately before the earlier date when he ceased to be subject to the Act of 1896, would have been treated as service for the purposes of that Act shall be treated as contributing service, and

contributions paid under that Act shall, for the purposes of the provisions of Part I of this Act relating to the return of contributions, be treated as having been paid under that Part of this Act :

A.D. 1937.

—
2ND SCH.
—cont.

Provided that this sub-paragraph, so far as it relates to the reckoning of service, shall not apply in relation to any such person as is mentioned in sub-paragraph (b) or sub-paragraph (c) of the last preceding paragraph who on the date when he first became subject to Part I of this Act was a registration officer ;

- (b) subsection (5) of section twelve shall not apply ; and
- (c) the percentage of his remuneration which shall be payable by way of contribution to the appropriate superannuation fund shall be—

- (i) if on the date when he first became subject to Part I of this Act he had completed less than ten years of service which would have been treated as service for the purposes of the Act of 1896, two and one-half per cent. ;

- (ii) if on the said date he had completed ten years, but less than twenty years, of such service as aforesaid, three per cent. ; and

- (iii) if on the said date he had completed twenty years of such service as aforesaid, three and one-half per cent.

4.—(1) A transferred poor law employee who was on the appointed day in the employment of a local authority and who, having become subject to the Act of 1922 by virtue of the Act of 1929, was immediately before the appointed day still subject to the Act of 1922 by virtue of the Act of 1929 or of a scheme made under section twenty-four thereof, shall, by virtue of this paragraph, be a contributory employee until he ceases to be in the employment of that local authority.

(2) In its application to—

- (a) any such person as is mentioned in the preceding sub-paragraph ; and
- (b) any transferred poor law employee who, having become subject to the Act of 1922 by virtue of the Act of 1929, ceased before the appointed day to be so subject to the Act of 1922, but, on or after the appointed day and within twelve months after he so ceased, and without having become in the interval subject to the Act of 1922 otherwise than by virtue of the Act of 1929, becomes a contributory employee ; and
- (c) any transferred poor law employee who, having become subject as a registration officer to the Act of 1922 by

A.D. 1937.

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2ND SOK.
—cont.

virtue of the Act of 1929, ceased before the appointed day to be so subject, but is on the appointed day in office as a registration officer,

Part I of this Act shall, whenever the employee in question is without a disqualifying break of service a contributory employee, have effect subject to the modifications set out in the next succeeding paragraph.

5. The modifications referred to, in the case of a person to whom the last preceding paragraph applies, are—

- (a) any service before the date when he first became subject to Part I of this Act which immediately before the appointed day, or, as the case may be, immediately before the earlier date when he ceased to be subject to the Act of 1922, would have been treated as contributing service for the purposes of that Act shall be treated as contributing service, and contributions paid under that Act shall, for the purposes of the provisions of Part I of this Act relating to the return of contributions, be treated as having been paid under that Part of this Act :

Provided that this sub-paragraph, so far as it relates to the reckoning of service, shall not apply in relation to any such person as is mentioned under head (b) or head (c) of sub-paragraph (2) of the last preceding paragraph who on the date when he first became subject to Part I of this Act was a registration officer ;

- (b) subsection (5) of section twelve shall not apply ; and
(c) the percentage of his remuneration which shall be payable by way of contribution to the appropriate superannuation fund shall be the same as the percentage of his salary or wages which he was required to contribute while he was subject to the Act of 1922 by virtue of the Act of 1929.

6. A transferred rating employee who was on the appointed day in the employment of a local authority and who, having remained subject to the Act of 1896 as a transferred rating employee, was immediately before the appointed day still subject to the Act of 1896 by virtue of any Act or statutory order shall, by virtue of this paragraph, be a contributory employee until he ceases to be in the employment of that local authority and, while he is in their employment, Part I of this Act shall, in its application to him, have effect subject to the following modifications, that is to say :—

- (a) any service before the appointed day which would have been treated as service for the purposes of the Act of 1896 shall be treated as contributing service, and contributions paid under that Act shall, for the purposes of the provisions of Part I of this Act relating to the

return of contributions, be treated as having been paid under that Part of this Act; A.D. 1937.

- (b) subsection (5) of section twelve shall not apply; and
(c) the percentage of his remuneration which shall be payable by way of contribution to the appropriate superannuation fund shall be—

—
2ND SCH.
—cont.

(i) if on the appointed day he had completed less than ten years of service which would have been treated as service for the purposes of the Act of 1896, two and one-half per cent. as respects so much of his remuneration as is remuneration for duties corresponding to the duties in respect of which he was, immediately before the appointed day, subject to the Act of 1896;

(ii) if on the appointed day he had completed ten years, but less than twenty years, of such service as aforesaid, three per cent. as respects so much of his remuneration as aforesaid; and

(iii) if on the appointed day he had completed twenty years of such service as aforesaid, three and one-half per cent. as respects so much of his remuneration as aforesaid,

and in all cases five per cent. as respects the balance, if any, of his remuneration.

7. A transferred rating employee who was on the appointed day in the employment of a local authority and who, having remained subject to the Act of 1896 by virtue of the Rating and Valuation Act, 1925, subsequently became subject to the Act of 1922 by virtue of an order made under section fifty-one of the Rating and Valuation Act, 1925, and was, immediately before the appointed day, still subject to the Act of 1922 with the benefit of the order, shall, by virtue of this paragraph, be a contributory employee until he ceases to be in the employment of that local authority, and, while he is in their employment, Part I of this Act shall, in its application to him, have effect subject to the following modifications, that is to say :—

- (a) any service before the appointed day, as well under the Act of 1896 as under the Act of 1922, which would have been treated as contributing service for the purposes of the Act of 1922, shall be treated as contributing service;
(b) subsection (5) of section twelve shall not apply;
(c) the percentage of his remuneration which shall be payable by way of contribution to the appropriate superannuation fund shall be the same as the percentage of his salary or

A.D. 1937.

2ND SCH.
---cont.

wages which he was required to contribute while he was subject to the Act of 1922; and

- (d) contributions paid under the Act of 1896, as well as contributions paid under the Act of 1922, shall, for the purposes of the provisions of Part I of this Act relating to the return of contributions, be treated as having been paid under that Part of this Act.

8. A transferred poor law employee who became subject to a local Act scheme by virtue of sub-paragraph (iii) of paragraph (a) of subsection (1) of section twenty-six of this Act shall, by virtue of this paragraph, be a contributory employee whenever he is, without a disqualifying break of service, in the employment of any local authority, and Part I of this Act shall, in its application to him, while he is such an employee, have effect subject to the following modifications, that is to say:—

- (a) contributions paid under the Act of 1896 shall, for the purposes of the provisions of Part I of this Act relating to the return of contributions, be treated as having been paid under that Part of this Act;
- (b) subsection (5) of section twelve shall not apply; and
- (c) the percentage of his remuneration which shall be payable by way of contribution to the appropriate superannuation fund shall be the same as the percentage of his remuneration which he was required to contribute while he was subject as aforesaid to the local Act scheme.

9. If, when any such person as is mentioned in the foregoing provisions of this Part of this Schedule last ceased to be subject to a statutory provision for superannuation, a payment was made to him under that provision by way of return of contributions, whether with or without interest, none of the modifications specified in the said foregoing provisions shall apply in relation to him unless he pays to the appropriate administering authority a sum equal to the sum so paid to him.

Section 19.

PART II.

CLERKS OF COUNTY COUNCILS, CLERKS OF THE PEACE OF
COUNTIES AND DEPUTY CLERKS OF THE PEACE OF COUNTIES.

A. The following provisions shall have effect as respects every clerk of the peace and county council appointed before the passing of the Local Government (Clerks) Act, 1931 (hereafter in this Part of this Schedule referred to as "the Act of 1931") :—

21 & 22
Geo. 5. c. 45.

1. The provisions of this Act, except as provided by the next succeeding paragraph, shall not apply, and the provisions of subsection (2) of section nine of the Act of 1931 shall continue to apply, in relation to any such clerk.

2. The provisions of subsections (1) and (2) of section nine of this Act, relating to allocation of superannuation benefits, shall have effect in relation to a superannuation allowance granted under subsection (2) of section nine of the Act of 1931 as they have effect in relation to a superannuation allowance granted under Part I of this Act.

A.D. 1937.

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2ND SCH.
—cont.

B. The following provisions shall have effect as respects every clerk of a county council, not being a local Act authority, appointed after the passing of the Act of 1931, and whether before, or on or after, the appointed day :—

1. The provisions of section seven of this Act shall not apply in relation to any such clerk, but no contribution shall be made by or in respect of him to the appropriate superannuation fund in respect of any period during which his service has been extended beyond the age of sixty-five years, either under subsection (2) of section four of the Act of 1931 or under subsection (3) of section one hundred of the Local Government Act, 1933.

23 & 24
Geo. 5. c. 51.

2. If any such clerk also holds office as clerk of the peace of the county, his remuneration as clerk of the county council shall, for the purposes of determining the amount of the contributions to be paid by and in respect of him, and of calculating the amount of any superannuation allowance payable to him, under the provisions of Part I of this Act, be deemed to be increased by an amount equal to his salary as clerk of the peace (including any payments made to him as such for his own use) so, however, that, if any such person holds the office of clerk of the peace after having been dismissed from the office of clerk of the county council, any superannuation allowance payable to him while he so holds the office of clerk of the peace shall be of such amount only as would have been payable to him if this paragraph had not been applicable in his case.

3. If any such clerk also holds office as clerk of the peace of the county, and is by reason of his voluntarily resigning the office of clerk of the peace deemed under the provisions of the Act of 1931 thereby to vacate the office of clerk of the county council, then, for the purposes of this Act, he shall be deemed voluntarily to have resigned the office of clerk of the county council.

4. If immediately before the appointed day the superannuation rights of any such clerk were regulated by Part I of the First Schedule to the Act of 1931, then, on his becoming a contributory employee under this Act,—

- (a) he shall be entitled to reckon as contributing service under this Act any contributing service within the meaning of the Act of 1931 which he was entitled to reckon immediately before the appointed day ;

A.D. 1937.

2ND SCH.
—cont.

- (b) contributions paid by him under Part I of the First Schedule to the Act of 1931 shall, for the purposes of the provisions of Part I of this Act relating to the return of contributions, be treated as having been paid under that Part of this Act;
- (c) the county council shall pay out of the county fund to the superannuation fund maintained under Part I of this Act such a sum as may, on the next valuation of the fund, be certified by the actuary to be appropriate in respect of the transfer of liability.

C. The following provisions shall have effect as respects certain deputy clerks of the peace of counties :—

If a contributory employee of a county council also holds office as deputy clerk of the peace of the county, his remuneration as an employee of the council shall, for the purpose of determining the amount of the contributions to be paid by and in respect of him, and of calculating the amount of any superannuation allowance payable to him, under the provisions of this Act, be deemed to be increased by an amount equal to his remuneration as deputy clerk of the peace :

Provided that—

- (a) if any such person holds the office of deputy clerk of the peace after having ceased to hold his employment in the service of the county council, any allowance payable to him while he so holds the office of deputy clerk of the peace shall be of such amount only as would have been payable to him if this paragraph had not been applicable to him; and
- (b) if any such person resigns, or is dismissed from, the office of deputy clerk of the peace, then, if he continues in the service of the county council, the provisions of Part I of this Act relating to the return of contributions shall apply to him as if in the office of deputy clerk of the peace he had been an employee of the county council, but the sum payable to him thereunder shall be a sum equal to the amount by which the contributions paid by and in respect of him have been increased by reason of this paragraph, and this paragraph shall not apply for the purpose of calculating any superannuation allowance payable to him on his ceasing to hold his employment under the county council,

PART III.

A.D. 1937.

CLERKS AND ASSISTANT CLERKS TO JUSTICES.

2ND SCH.

—cont.

Section 20.

The modifications subject to which this Act applies to certain justices' clerks and certain employees of such clerks are as follows:—

- (a) subsection (3) of section three and subsections (5) and (6) of section twelve shall not apply;
- (b) for the purposes of section seven, each bench of justices whom a clerk serves shall as respects his clerkship to them be deemed to be the employing authority, and, in the case of an employee of a clerk, the clerk acting with the consent of each bench of justices whom he serves shall be deemed to be the employing authority;
- (c) for the purposes of the following provisions, that is to say, proviso (i) to paragraph (b) of subsection (2) of section eight, subsection (4) of section ten, and section eleven, each bench of justices whom the person in question, or his employer, serves shall as respects the clerkship to them or employment for the purposes of that clerkship be deemed to be the employing authority (or, as the case may be, the local authority), but, if the council concerned are dissatisfied at any action taken by the justices under any of those provisions, they may appeal against it to the Secretary of State, whose decision shall be final;
- (d) the remuneration of any such justices' clerk shall be taken to be the salary and other payments paid or made to him as such and retained by him for his own use, after deducting the amount of any salaries or other sums paid by him to persons employed by him in connection with his duties as such clerk, and after deducting the amount of any office expenses;
- (e) in the case of an employee whose employer holds two or more clerkships to justices, the employer shall from time to time apportion the employee's remuneration between those clerkships, but, if any council concerned are dissatisfied at the apportionment, they may appeal against it to the Secretary of State, whose decision shall be final;
- (f) any payments to be made in respect of any such clerk or employee, not being payments which are payable out of the superannuation fund, shall be paid out of the county fund or, as the case may be, out of the general rate fund of the borough;
- (g) in relation to a clerk or an employee of a clerk, or a person who is at any time a contributory employee otherwise than by virtue of section twenty of this Act after being

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2ND SCH.
—cont.

a contributory employee by virtue of that section, the expression "service" includes, in addition to any service within the meaning assigned to that expression by Part III of this Act, any service rendered after attaining the age of eighteen years and before attaining the age of sixty-five years, either as a whole-time justices' clerk, or as an employee of a clerk to justices, being in the latter case service during which the employee devoted substantially the whole of his time to assisting his employer in the discharge of functions appertaining to any clerkship or clerkships to justices held by the employer; and

- (h) in the case of a clerk or an employee who, immediately before the appointed day, was subject to the Act of 1922 by virtue of a local Act or an order made by the Secretary of State under a local Act, the rate of contribution to be paid by him shall be five per cent. of his remuneration, and he shall be entitled to reckon as contributing service for the purposes of this Act any service which, immediately before the appointed day, he was entitled to reckon as contributing service for the purposes of the Act of 1922, and this Act shall have effect in relation to him subject to such other modifications, if any, as the Secretary of State may deem it necessary by order to make for the purpose of securing that his position under this Act shall be substantially as favourable to him as was his position under the Act of 1922, as applied to him by the local Act or original order.

Section 27.

PART IV.

REGISTRATION OFFICERS.

1. The following provisions of this Part of this Schedule shall, in lieu of any other provisions of this Act or of any local Act scheme (including any definition of "service" contained in this Act or in the scheme), have effect with respect to the reckoning of service rendered as a registration officer before the appointed day by a registration officer who—

- (a) was first appointed as such after the thirty-first day of March, nineteen hundred and thirty, and before the appointed day; or
- (b) by virtue of the Local Government Act, 1929, remained subject as a registration officer to the Act of 1896, or became subject as such to the Act of 1922, but ceased before the appointed day to be so subject,

and who, in either case, either is in office as a registration officer on the appointed day, or, having ceased to hold office before the

appointed day is, on or after the appointed day and within twelve months from the date on which he so ceased, re-appointed as a registration officer.

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2ND SCH.
—cont.

2. For the purposes of Part I of this Act and of any local Act scheme—

- (a) if any special provision contained in a local Act is applicable to the reckoning of any such service as is mentioned in the preceding paragraph, account shall be taken of that service in accordance with that provision; and
- (b) in any other case, account shall be taken of any such service in such manner and subject to such terms and conditions, including conditions as to the making of payments by an employee or a local authority, as may be prescribed.

PART V.

Section 28.

MENTAL HOSPITAL EMPLOYEES.

1. In this Part of this Schedule the expression “the Act of 1909” means the Asylums Officers’ Superannuation Act, 1909, as extended by any subsequent enactment.

9 Edw. 7.
c. 48.

2.—(1) Where a mental hospital employee, being an established officer or servant within the meaning of the Act of 1909, ceases to be employed as such, or so ceased before the appointed day, but, on or after the appointed day and within twelve months after so ceasing, becomes a contributory employee or local Act contributor under the same or another local authority—

- (a) account shall be taken in the prescribed manner of his previous service as an officer or servant employed in a permanent capacity within the meaning of the Act of 1909 and of any other previous service with any local authority;
- (b) if he becomes entitled to receive a superannuation allowance under Part I of this Act or under the local Act scheme, the body by which he was employed as a mental hospital employee shall, out of the fund out of which his remuneration was paid, contribute annually to the superannuation fund maintained by the appropriate administering authority or the local Act authority, as the case may be, a sum calculated in such manner as may be prescribed by way of contribution towards the allowance, and that body shall have the like right of contribution, if any, under the proviso to section twelve of the Act of 1909 as if that sum constituted a payment by way of superannuation allowance awarded by that body to the employee; and

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2ND SCH.
—cont.

- (c) if he becomes entitled to a return of contributions under Part I of this Act or under the local Act scheme, he shall be entitled to receive from the bodies concerned the aggregate amount of his contributions under the Act of 1909.

(2) If an employee mentioned in the preceding sub-paragraph has received a return of contributions under the Act of 1909, then, unless he repays those contributions, the preceding sub-paragraph shall not apply in relation to him and, notwithstanding anything in the definition of service contained in this Act, he shall not be entitled to reckon for the purposes of Part I of this Act any service rendered by him as an officer or servant employed in a permanent capacity within the meaning of the Act of 1909.

3.—(1) The following provisions of this paragraph apply in relation to—

- (a) a contributory employee or local Act contributor under a local authority who ceases to be employed as such by them, or
(b) a designated employee who had ceased before the appointed day to be subject to the Act of 1922,

but, on or after the appointed day and within twelve months after so ceasing, becomes an established officer or servant within the meaning of the Act of 1909 as a mental hospital employee.

(2) If a person mentioned in the preceding sub-paragraph repays any sum paid to him by way of return of contributions, whether with or without interest, under Part I of this Act or under the local Act scheme or under the Act of 1922—

- (a) account shall be taken for the purposes of the Act of 1909 in the prescribed manner of his previous service with any local authority;
(b) the administering authority appropriate in relation to the authority whose employment he ceased to hold, or the local Act authority, as the case may be, shall pay out of their superannuation fund to the body under which he becomes a mental hospital employee a transfer value ascertained in the prescribed manner; and
(c) if he becomes entitled to a return of contributions under the Act of 1909, there shall be included in the aggregate amount of his contributions under that Act so much of the said transfer value as represents contributions or additional contributory payments paid or made by him under Part I of this Act or under the local Act scheme or under the Act of 1922.

4. Where the fund out of which the remuneration of a mental hospital employee was or is paid by the body under

which he was or becomes such on employee is not the fund out of which superannuation allowances are paid to such employees, the foregoing provisions of this Part of this Schedule shall have effect subject to such modifications as may be prescribed.

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2ND SCH.
—*cont.*

THIRD SCHEDULE.

Section 36
(6).

ADMINISTRATIVE ACTION OF LOCAL AUTHORITIES AS RESPECTS WHICH REGULATIONS MAY BE MADE.

1. For determining which of their employees will on the appointed day become contributory employees or local Act contributors, for making returns for the purposes of subsection (1) of section one of this Act, and for notifying to their existing employees and to employees subsequently appointed or promoted whether they become contributory employees or local Act contributors.

2. For ascertaining which of their employees are officers and which are servants, and what rate of contribution is applicable in the case of any particular employee.

3. For ascertaining and recording for the purposes of this Act the service which any person who on the appointed day is, or who at any subsequent date becomes, a contributory employee or a local Act contributor is entitled to reckon, and the class of service into which it falls.

4. For securing early decisions upon any questions which may fall to be determined affecting the rights or liabilities of any employee.

5. For regulating the relations and financial arrangements between an administering authority and any other local authority interested in the superannuation fund maintained by the administering authority.

6. For the exchange of information in advance of the appointed day, and thereafter from time to time, between local authorities with regard to the matters aforesaid.

7. For transmitting to any other local authority, whose employment a contributory employee, or a local Act contributor, enters, particulars as to his past service and rates of remuneration, the contributions paid by him and any sum paid by way of return of contributions.

8. Generally, for the purpose of carrying into effect the provisions of this Act.

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Section 41.

FOURTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
12 & 13 Geo. 5. c. 59.	The Local Government and other Officers' Superannuation Act, 1922.	The whole Act.
15 & 16 Geo. 5. c. 90.	The Rating and Valuation Act, 1925.	Section fifty-one.
19 & 20 Geo. 5. c. 17.	The Local Government Act, 1929.	In paragraph (g) of section eighteen, the word "superannuation." In section one hundred and twenty-two, the words from "and for the purpose" to the end of the section. In section one hundred and twenty-four, subsection (1) and paragraph (a) of subsection (2).
21 & 22 Geo. 5. c. 45.	The Local Government (Clerks) Act, 1931.	In section four, subsection (4). In section nine, subsection (1). Section ten. The First Schedule.

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